

BILL OF SALE

INSERT CONTRACT NUMBER

In accordance with Defense Logistics Agency Energy Contract # **SPE600-XX-C-XXXX** dated **Month Day, 20XX**, and the good and valuable consideration described therein, the United States of America, hereinafter designated "Government," hereby sells, transfers and conveys to **CONTRACTOR NAME**, Contractor Address, hereinafter designated "Grantee," the property described below:

ALL THOSE CERTAIN facilities and equipment comprising the **INSTALLATION NAME NAME OF UTILITY SYSTEM**, as described on the attached DA Form 337 "Request for Approval of disposal of Building and Improvements" dated **Month Day, 20XX**, attached hereto and made a part of this Bill of Sale.

This sale is subject to the following provisions:

1. The terms and conditions found in the Utility Privatization Contract No. **SPE600-XX-C-XXXX**, being an agreement between the Government and the Grantee, along with all applicable federal, state, county, municipal, and Installation laws, ordinances, regulations, rules, orders, and other requirements; and
2. The Government covenants that it has good and valid title to the facilities and equipment being conveyed by this Bill of Sale; that it is the sole owner of said facilities and equipment and no other party has any lawful interest therein, other than the possible attachment rights; and
3. The Government makes no warranty, express or implied, with regard to the condition of the facilities and equipment, which are being transferred in "AS IS" "WHERE IS" condition; and
4. These facilities will remain available through Contract No. **SPE600-XX-C-XXXX** for any future mobilization missions; and
5. All equipment in place and installed property will remain in these facilities.

This bill of sale is executed on behalf of the Department of the Army this ____ day of _____, **20XX**.

<<SIGNATURE BLOCK USACE>>>

ACCEPTANCE

I am **Contractor Name** who holds the position of **President** with **Company Name**, and I am duly authorized to accept and sign this Bill of Sale for **Company Name** this ____ day of _____, 20XX.

Company Name

By: _____

Contractor Name, President